

**JUSTIFICATION FOR OTHER THAN FULL AND
OPEN COMPETITION (OTFAOC)**

Federal Acquisition Regulation (FAR) Part 6 Justification & Approval (J&A), Supporting
Procurements under FAR Part 12, and FAR Part 15

Tracking Number: 832571841

Contract Number: To be determined

Task/Delivery Order Number: Not Applicable

Procurement Title: Software Asset Management (SWAM) Support Services

Estimated Value: [REDACTED]

Statutory and Regulatory Authority: 10 U.S.C. 3204(a)(1) and FAR 6.302-1/DFARS 206.302-1

Justification for OTFAOC Number: JA25-040

Upon the basis of the following justification, I, as the Procuring Activity Competition Advocate, hereby approve the use of other than full and open competition of the proposed contractual action pursuant to the authority of FAR 6.302-1/DFARS 206.302-1.

1. REQUIRING AGENCY AND CONTRACTING ACTIVITY:

Requiring Agency:

Defense Information Systems Agency (DISA)/J6 Pentagon

[REDACTED]

Washington, DC 20301-7010

Contracting Activity:

DISA/Defense Information Technology Contracting Organization (DITCO) PS8413

2300 East Drive

Building 3600

Scott Air Force Base, Illinois 62225-5406

2. NATURE/DESCRIPTION OF ACTION(S): The nature of this action is to issue a bridge contract for SWAM services for up to 8 months firm fixed price (FFP) to extend the period of performance (PoP) for contract, [REDACTED]. The PoP for the current contract ends March 28, 2025. This extension will extend the PoP by 8 months to November 13, 2025. This extension will ensure continued support during the period of the follow-on contract. The SWAM effort actively supports software licenses and software support for J6 and its stakeholders. [REDACTED]

3. DESCRIPTION OF SUPPLIES/SERVICES:

[REDACTED]

[REDACTED]

[REDACTED]

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DISA J6 Pentagon requires SWAM services to actively support software licenses and support for DISA/J6 and its stakeholders. Continuity of services is required for SWAM support and services. The contract provides support software licenses that DISA J6 manages the lifecycle of software licenses and software support for over 1,300 different software manufacturers and software titles. This support includes recording software license purchases and reviewing software usage on a regular basis to ensure compliance with software license agreements and entitlements. The purpose of this contract is to help the Government manage software licenses from numerous software contracts along with limited small purchases of software maintenance and licenses to meet the Government's requirement for continuous software technical support, renewals, and licensing with manufacturer access to government required fixes, patches, and updates.

The estimated cost of support for this bridge contract is [REDACTED] for the 8 months: March 29, 2025 through November 13, 2025.

4. IDENTIFICATION OF STATUTORY AUTHORITY:

Only one responsible source and no other supplies or services will satisfy agency requirements, 10 U.S.C. 3204(a)(1) (FAR 6.302-1/DFARS 206.302-1)

5. DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS:

(a) Description of events.

The current SWAM contract, [REDACTED] is currently under Washington Headquarters Services (WHS) Acquisition Directorate (AD) which expires 28 March 2025. After reassessing the milestone schedule due to altering acquisition strategy for SWAM, the projected award for the DITCO recompet is 13 October 2025 plus a 30-day transition, 13 November 2025, resulting in a possible mission support gap of approximately eight months. The Government has identified a continuous need for SWAM support and services and the on-going acquisition for the follow-on requirement. To avoid a break in service, a bridge contract action will need to be executed. This extension of the current contract will allow for continued support for this vital program and will provide a consistent level of effort for DISA J6 and its stakeholders without a break in service.

(b) Justification.

(1) 'Minimum Government requirements. The SWAM effort actively supports software licenses and software support for J6 and its stakeholders. In awarding this bridge contract, DISA J6 may continue SWAM support and services for DISA/J6 and its stakeholders without disruption.

(2) Proposed sole source contractor.

Vendor: TM3 Solutions, Inc.
Cage: 5AJF6

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UEI: WT7KNDWBFLK5
Address: 2800 Eisenhower Ave, Suite 260
Alexandria, VA 22314-5210

TM3 Solutions, Inc. is cited for sole source follow-on acquisitions as described in FAR 6.302-1/DFARS 206.302-1, include an estimate of the cost to the Government that would be duplicated and how the estimate was derived or identify the unacceptable delays that would result in fulfilling the agency's requirement if any other source is used.

- (3) Discussion regarding cause of the sole source situation. This is a continuation of a previous effort by the same contractor, TM3 Solutions. Competition is not feasible for this short duration bridge requirement as described above. The follow-on, competitive effort for this requirement is on-going and anticipated to be awarded in October 2025.
- (4) Impact. If this sole source action was not executed, DISA/J6 SWAM services and support to DISA/J6 and its stakeholders would be severely degraded, negatively impacting each of their customers' missions. DISA/J6 Pentagon customers include the Office of the Secretary of Defense, Joint Staff, Pentagon Force Protection Agency, and other Fourth Estate organizations.

6. CONTRACT OPPORTUNITIES ANNOUNCEMENT/POTENTIAL SOURCES: The follow-on requirement was solicited via 8(a) Small Business Set Aside in September 2024.

7. DETERMINATION OF FAIR AND REASONABLE COST: A price evaluation will be accomplished to determine the pricing as fair and reasonable. The contracting officer will determine a fair and reasonable cost by obtaining historic cost/pricing information, comparing proposed prices with the Independent Government Cost Estimate, and reviewing current commercial prices

8. MARKET RESEARCH: TM3 is the only contractor that may fully support the Government's immediate need in the timeframe necessary for SWAM support and services.

9. ANY OTHER SUPPORTING FACTS: Not Applicable

10. LISTING OF INTERESTED SOURCES: In accordance with DISA Acquisition Regulation Supplement 206.302-1 (S-90), a source sought was not performed to identify other potential sources for the bridge period.

11. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FULL AND OPEN COMPETITION:

- (a) Procurement History.

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This bridge extension, tracking number 832571841, is a new DISA requirement to the following Washington Headquarters Services contract;

- Contract Number: [REDACTED]
- Contract dollar value: [REDACTED]
- Incumbent name: TM3 Solutions, Inc. Cage: 5AJF6
- Incumbent business size: 8(a) and SDVOSB
- Contract Period of Performance: 29 Sep 2019 through 28 March 2025
- Method of previous acquisition: Competitive 8(a) set-aside

(b) The Government has identified a continuous need for SWAM support and services, therefore, there will be a follow-on requirement. The projected award for the DITCO recompetes is 13 October 2025 plus a 30-day transition, 13 November 2025, resulting in a possible mission support gap of approximately eight months.

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TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

TITLE/ORGANIZATION: Branch Chief, DISA/JP831

PHONE:

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME:

SIGNATURE/DATE:

TITLE/ORGANIZATION: Program Analyst/ DISA/JP814

PHONE:

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME:

SIGNATURE/DATE:

TITLE/ORGANIZATION: Contracting Officer/DISA/PS8332

PHONE:

PROCURING ACTIVITY COMPETITION ADVOCATE APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$15M, this review serves as approval and my written determination that the aforementioned FAR circumstances apply.

NAME:

SIGNATURE/DATE:

TITLE/ORGANIZATION: Procuring Activity Competition Advocate

PHONE:

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO John M. Ross, john.m.ross138.civ@mail.com

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